

**PLACER COUNTY SUPERIOR COURT
FRIDAY, CIVIL LAW AND MOTION
DEPARTMENT 1
COMMISSIONER CHRISTINE S. DEHR
TENTATIVE RULINGS FOR JULY 24, 2026 AT 8:30 A.M.**

These are the tentative rulings for the **FRIDAY, JULY 24, 2026 at 8:30 A.M.**, civil law and motion calendar. The tentative ruling will be the court's final ruling unless notice of appearance and request for oral argument are given to all parties and the court by **4:00 p.m., THURSDAY, JULY 23, 2026**. Notice of request for argument to the court must be made by calling (916) 408-6481. Requests for oral argument made by any other method will not be accepted. Prevailing parties are required to submit orders after hearing to the court within 10 court days of the scheduled hearing date and approval as to form by opposing counsel. Court reporters are not provided by the court. Parties may provide a court reporter at their own expense.

NOTE: PARTIES MAY REQUEST A REMOTE APPEARANCE FOR ORAL ARGUMENT. (PLACER COURT LOCAL RULE 10.24.) More information is available at the court's website: www.placer.courts.ca.gov.

Except as otherwise noted, these tentative rulings are issued by **COMMISSIONER CHRISTINE S. DEHR**. If oral argument is requested, it shall be heard at **8:30 a.m.** in **DEPARTMENT 1** located at the Historic Auburn Courthouse, 101 Maple Street, Auburn, California.

1. M-CV-0074064 MIDLAND FUNDING v. JOHNSON, HUNTER

NOTE: If oral argument is requested in this case, it shall be heard on JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendant's Motion to Set Aside Void Default and Default Judgment

The appearances of the parties are required for the hearing.

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2. M-CV-0083604 CAVALRY SPV v. CORNELIUS, PATRECE

Defendant's Motion to Set Aside Default and Default Judgment

The motion is denied without prejudice. There is no proof of service in the file showing plaintiff was served with the current motion. There is also no proposed answer attached to the motion.

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3. M-CV-0088409 CAPITAL ONE v. YOUSEF, LUSIA

Plaintiff's Motion to Vacate Dismissal and Enter Judgment

Ruling on Request for Judicial Notice

The request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Motion

The unopposed motion is granted. The dismissal entered on September 16, 2025 is vacated.

Judgment is entered against defendant Lusia Yousef in the amount of \$4,203.28, which includes damages in the amount of \$3,599.67 and costs of \$603.61.

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4. S-CV-0045236 RODRIGUEZ, JEFFREY v. JONES, GHAZALA

This tentative ruling is issued by the **Honorable Jeffrey S. Penney**. If oral argument is requested, it shall be heard on Friday, July 31, 2026, at 1:30 p.m. in Department 44.

Defendants Ghazala Jones and Daniel Jones Ex Parte Application for Stay of Enforcement of May 28, 2026, Attorney-Fee/Cost Order Pending Appeal and Waiver of Undertaking Under Code of Civil Procedure Sections 917.1 and 995.240

Preliminary Matters

The court accepts defendant Daniel Jones's joinder to defendant Ghazala Jones's ex parte application.

Ruling on Motion

On June 26, 2026, Defendants applied ex parte for the court to stay enforcement of its May 28, 2026, order granting plaintiffs' motion for attorney's fees and costs pending appeal and to waive the undertaking requirement. (Code Civ. Proc., §§ 917.1, 995.240.) The court issued an order on the ex parte application that set the matter for hearing for July 24, 2026.

Plaintiffs first argue they do not consent to any stay pending appeal and thus the court is unable to stay execution of the attorney's fees and costs order. (Code Civ. Proc., § 918.) However, defendants do not seek relief pursuant to Code of Civil Procedure section 918 and thus the procedures therein are inapplicable to the present application. (*Sarkany v. West* (2022) 82 Cal.App.5th 801, 809.)

Defendants instead invoke the stay procedures in Code of Civil Procedure section 917.1, which requires defendants, as the appellants, to post an undertaking to stay the enforcement of an order for the payment of money pending appeal. (Code Civ. Proc., § 917.1, subd. (a)(1).) Defendants' appeal of the court's order granting plaintiffs' motion for attorney's fees and costs constitutes an order for the payment of money and thus requires the posting of an undertaking to stay execution of the court's order pending appeal.

Code of Civil Procedure section 995.240, on the other hand, provides

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The court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived. (Code Civ. Proc., § 995.240.)

Defendants, as the moving parties, bear the burden to establish entitlement to waiver of the bond procedures. (*Burkes v. Robertson* (2018) 26 Cal.App.5th 334, 346.) Defendants must make two showings: (1) indigency and (2) inability to obtain sufficient sureties. (*Fuller v. State of California* (1969) 1 Cal.App.3d 664, 670–71; *but see Alshafie v. Lallande* (2009) 171 Cal.App.4th 421, 436, fn. 10.)

Defendants establish both requirements here. Defendants’ respective declarations filed in support of their application establish they have no cash or liquid assets available to them, are unemployed, and insufficient monthly incomes. Additionally, defendants’ respective declarations establish they are unable to obtain sufficient sureties due to their indigency and cannot borrow money from anyone to obtain sufficient sureties.

The court additionally considers defendants are elderly and ill and thus unable to obtain employment to obtain sufficient sureties. Further, the court considers that it granted defendant Ghazala Jones’s fee waiver request on December 10, 2025.

Accordingly, defendants’ application is granted. The court waives the undertaking requirement and stays execution of the court’s May 28, 2026, order granting plaintiffs’ motion for attorneys’ fees and costs pending appeal.

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5. S-CV-0045558 CAUCHI, VINCENT v. VERNON, RAQUELLE

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiff's Motion for Appointment of Discovery Referee

The appearances of the parties are required for the hearing.

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6. S-CV-0047785 MORGAN, HAYLEY v. KAISER PERMANENTE

Defendant Kaiser Foundation Hospital's Motion to Strike the Second Amended Complaint (SAC)

The motion to strike is granted.

The SAC filed includes amendments beyond the scope of the August 5, 2025 order. Plaintiff's prior motion for leave sought limited relief regarding the amendment of the named parties. The court afforded leave to allow plaintiff to replace erroneously named defendant "Kaiser Permanente" with "Kaiser Foundation Hospital". No other relief was granted.

Plaintiff filed an untimely SAC, which includes additional claims that go beyond the scope of the leave authorized by the court. The motion is properly granted since the SAC is not drawn in conformity with the prior orders of the court.

The SAC, filed on October 31, 2025, is stricken in its entirety.

No further leave to amend is granted at this time. This does not, however, prevent plaintiff from filing a properly noticed motion to include a copy of any proposed amended pleading.

Defendant Kaiser Foundation Hospital's Demurrer to the Second Amended Complaint (SAC)

The demurrer is dropped as moot in light of the court's ruling on the motion to strike.

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7. S-CV-0049385 MUNOZ, JOSE v. FORD MOTOR CO

NOTE: If oral argument is requested in this case, it shall be heard on JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.

Defendants Ford Motor Company and Future Ford Lincoln of Roseville's Motion for Summary Judgment and/or Summary Adjudication and Defendant Ford Motor Company's Motion to Compel Plaintiff's Deposition and Sanctions

The appearances of the parties are required for both hearings.

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8. S-CV-0050027 CANLAS, DOUGLAS v. TAYLOR, ROBERT

Defendant's Motion to Compel Responses to Production of Documents and Sanctions

The motion is granted. Plaintiff shall provide verified responses and responsive documents, without objections, to request for production of documents, set one, by August 7, 2026.

Sanctions in the amount of \$2,015.00 are imposed upon plaintiff Douglas Canlas.

Defendant's Motion to Compel Responses to Special Interrogatories and Sanctions

The motion is granted. Plaintiff shall provide verified responses, without objections, to special interrogatories, set one, by August 7, 2026.

Sanctions in the amount of \$2,015.00 are imposed upon plaintiff Douglas Canlas.

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9. S-CV-0053949 McGETTIGAN, DEBORAH v. JOHN MOURIER CONST

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Plaintiffs' Application to Strike or Seal Alcal Specialty Contracting, Inc. and Pacific
Coast Supply, LLC's Cross-Complaint

The appearances of the parties are required for the hearing.

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10. S-CV-0054586 JAHANSHAHI, SHAHROUZ, v. BULGARI CORP OF AMER

This tentative ruling is issued by the **Honorable Michael W. Jones**:

The motion to set aside sanctions is continued to **JULY 30, 2026 at 8:30 A.M. in DEPARTMENT 3** to be heard by the **HONORABLE MICHAEL W. JONES**.

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11. S-CV-0054677 FELIX, ROSENDO v. AMERICAN HONDA MOTOR CO

Plaintiff's Motion to Compel Deposition of Defendant American Honda Motor Co., Inc.'s Person Most Qualified (PMQ), Production of Documents, and Sanctions

The motion is granted.

Defendant shall produce its PMQ on a date, time, and at a location as noticed by plaintiff. The deposition shall occur no later than August 31, 2026. Defendant's PMQ shall produce all responses and responsive documents, without further objections, to Matters nos. 1 through 11 and Requests nos. 1 through 17.

Sanctions in the amount of \$2,370.00 are imposed upon defendant American Honda Motor Co., Inc.

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12. S-CV-0055288 GEOFFROY, NOLAN v. SANTOS, MARCOS

Plaintiff's Motion to Transfer Venue

Request for Judicial Notice

Plaintiff's request for judicial notice, filed on April 14, 2026, is granted pursuant to Evidence Code section 452.

Plaintiff's request for judicial notice, filed on July 17, 2026, is granted pursuant to Evidence Code section 452.

Ruling on Motion

The motion is granted. The court finds the convenience of the witnesses and ends of justice support a change of venue of the matter to Sacramento County.

Nolan Geoffroy v. Marco Santos, Placer Court Case No. SCV-55288, is transferred to the Sacramento Superior Court subject to plaintiff remitting all related transfer fees. (Code of Civil Procedure section 399.)

All future hearing dates are vacated.

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13. S-CV-0055499 MILES, HEATHER v. YASSO, JAMES

Plaintiff Heather Miles' Motion to Quash or Modify Deposition Subpoena, Protective Order, and Sanctions

The motion is granted in part.

The request to quash the deposition subpoenas is denied.

A protective order is entered as to all seven deposition subpoenas issued on May 8, 2026 to plaintiff's medical service providers limiting production to fall under the following parameters:

- Disclosure of records is limited to five years preceding the subject collision, i.e. from 2018 and ongoing;
- All productions shall be subject to a first-look agreement where all documents will first be produced to plaintiff's counsel to evaluate and prepare a privilege log of the documents to be withheld and/or redacted before providing the remaining, redacted documents to defendant's counsel along with the privilege log. Plaintiff will have 30 days from receipt of the documents to complete review and provide the redacted documents and privilege log to defendant's counsel;

The request for sanctions is denied at this time.

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14. S-CV-0055614 DAVIS, CARRIE v. TRUEPOINT SOLUTIONS

Plaintiff's Motion to Quash Defendants' Deposition Subpoena and Sanctions

The motion is dropped from calendar.

A notice of settlement of entire case was filed on July 13, 2026.

The trial and all related trial dates are vacated.

An OSC re settlement is set for **FRIDAY, NOVEMBER 13, 2026 at 9:00 A.M. in DEPARTMENT 1.**

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15. S-CV-0055674 HUSSAIN, CHRISTOPHER v. BANK OF AMERICA

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant's Demurrer to the First Amended Complaint (FAC)

The appearances of the parties are required for the hearing.

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16. S-CV-0055995 PANASYUK, BENJAMIN v. COUNTY OF PLACER

Defendant City of Folsom's Demurrer to the First Amended Complaint (FAC)

The demurrer is sustained in its entirety with leave to amend.

The second cause of action for negligence is deficiently pleaded as it fails to sufficiently allege facts to support a cause of action for liability against defendant. (Government Code section 815; *Ibarra v. California Coastal Comm.* (1986) 182 Cal.App.3d 687, 692.)

The second amended complaint shall be filed and served by August 24, 2026.

The court, on its own motion, continues the case management conference to **FRIDAY, DECEMBER 11, 2026 AT 9:00 A.M. IN DEPARTMENT 1.**

Defendant City of Folsom's Motion to Strike the First Amended Complaint (FAC)

The motion to strike is granted in its entirety without leave to amend.

The allegations stated against defendant in paragraphs 8, 63, 83, and 89 are irrelevant and inconsistent with the additional allegations pleaded against defendant in the remainder of the FAC.

Paragraphs 8, 63, 83, and 89 are stricken as it pertains to defendant City of Folsom without leave to amend.

The court, on its own motion, continues the case management conference to **FRIDAY, DECEMBER 11, 2026 AT 9:00 A.M. IN DEPARTMENT 1.**

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16. S-CV-0055995 PANASYUK, BENJAMIN v. COUNTY OF PLACER

Defendant City of Auburn's Demurrer to the First Amended Complaint (FAC)

Ruling on Request for Judicial Notice

Defendant's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained in its entirety with leave to amend.

None of the five causes of action pleaded against defendant allege sufficient facts to support the alleged claims. (Government Code section 815; *Ibarra v. California Coastal Comm.* (1986) 182 Cal.App.3d 687, 692.)

The second amended complaint shall be filed and served by August 24, 2026.

The court, on its own motion, continues the case management conference to **FRIDAY, DECEMBER 11, 2026 AT 9:00 A.M. IN DEPARTMENT 1.**

Defendant City of Auburn's Motion to Strike the First Amended Complaint (FAC)

In light of the court's ruling on the demurrer, the motion to strike is dropped as moot.

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17. S-CV-0056116 CAPT JOHN J. SAX FAM FND v. PANOSSIAN-BASSLER, NATALIE

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Defendant's Anti-SLAPP Motion

The appearances of the parties are required for the hearing.

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18. S-CV-0056495 OLBERDING, DEBORAH v. BOONE, CHRISTOPHER

This tentative ruling is issued by **Commissioner Michael A. Jacques**.

The hearing on respondent's motion for attorney fees is continued to **August 11, 2026, at 8:30 a.m. in Department 32**. Petitioner may file a supplemental opposition responding to any new argument or evidence contained within respondent's reply or attached declaration to reply on or before July 31, 2026. No further briefing is permitted.

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19. S-CV-0056677 RASMUSSEN, CASEY v. BURNS, CHRISTA

Cross-Defendant Casey Rasmussen's Demurrer to the First Amended Cross-Complaint (FAC-C)

Preliminary Matters

As an initial matter, the court will consider the substance of the demurrer. Code of Civil Procedure section 430.40(a) is permissive in nature, stating that a demurrer *may* be filed within 30 days after the filing of the complaint. (*McAllister v. County of Monterey* (2007) 147 Cal.App.4th 253, 280.) Further, the court has discretion to consider a demurrer, even an untimely filed one. (*Jackson v. Doe* (2011) 192 Cal.App.4th 742, 750.)

Ruling on Request for Judicial Notice

Cross-defendant's request for judicial notice is granted pursuant to Evidence Code section 452.

Ruling on Demurrer

The demurrer is sustained in part with leave to amend.

The first cause of action for quiet title is deficiently pleaded as it does not plead sufficient facts to allege the date in which cross-complaint seeks a determination as to title. (Code of Civil Procedure section 761.020(d).)

The second cause of action for fraudulent concealment fails to plead the level of sufficiency necessary to support such a claim. Specifically, the allegations do not sufficiently allege cross-defendant concealed a material fact; that cross-defendant intentionally concealed or suppressed the fact with the intent to defraud; or that the cross-complainant was unaware of the material fact and would not have acted if she had known of the concealed or suppressed fact. (*Lovejoy v. AT&T Corp.* (2004) 119 Cal.App.4th 151, 157-158.)

The third and fourth causes of action for intentional misrepresentation are deficiently pleaded as cross-complainant does not allege sufficiently specific facts of an intent to induce reliance or actual and justifiable reliance. (*Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1245.)

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19. S-CV-0056677 RASMUSSEN, CASEY v. BURNS, CHRISTA

The seventh cause of action for slander of title is deficiently pleaded as it falls outside the three-year statute of limitations and there are insufficient facts pleaded to allege tolling of the statute of limitations. (Code of Civil Procedure section 338(g).)

The ninth and tenth causes of action for rescission cannot stand as currently pleaded. Rescission is a remedy available to a contracting party, based upon a breach of contract or fraud, where that party no longer desires to keep the contract alive. (*Wong v. Stoler* (2015) 237 Cal.App.4th 1375, 1384.) The underlying fraud claims related to the remedies sought in these two claims are deficiently pleaded and do not provide sufficient factual allegations to support either remedy.

The twelfth cause of action fails to sufficiently allege facts regarding the receipt of stolen property. (Penal Code section 496(a).)

The demurrer is overruled as to the eighth cause of action. The allegations in this claim, when the FAC-C is read as a whole, are sufficient to allege constructive trust.

The demurrer is overruled as to the eleventh cause of action for intentional infliction of emotional distress. The allegations in this claim, when the FAC-C is read as a whole, are sufficient to allege the claim.

The demurrer is overruled as to the thirteenth, fourteenth, and fifteenth cause of action for declaratory relief. The allegations within each claim, when read in conjunction with the FAC-C as a whole, are sufficient to allege the claims.

The second amended cross-complaint shall be filed and served by August 21, 2026.

Cross-Defendant Casey Rasmussen's Motion to Strike the First Amended Cross-Complaint (FAC-C)

The motion to strike is granted in its entirety with leave to amend. The FAC-C does not allege sufficient facts to support the punitive damages or treble damages.

The second amended cross-complaint shall be filed and served by August 21, 2026.

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20. S-CV-0057556 IRPO GOLNOOSH HAJISHEIKHI

**NOTE: If oral argument is requested in this case, it shall be heard on
JULY 24, 2026 AT 1:00 P.M. in DEPARTMENT 1.**

Respondent's Motion to Seal Unredacted Arbitration Award and Respondent's Motion
to Dismiss Petition to Vacate Arbitration

The appearances of the parties are required for both hearings.

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21. S-CV-0057559 TJM PLAZA GRF2 v. JAIYOON

The reserved hearing on the demurrer is dropped from the calendar as no moving papers were filed with the court.

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22. S-CV-0057816 ROE, JOHN VCF v. PLACER UNION HS DIST

Plaintiff's Motion to Seal and Grant Request to Proceed under Fictitious Name

The application is granted as prayed.

Plaintiff may proceed with usage of the name "John VCF Roe" during the course of the action. (Code of Civil Procedure section 367; *Doe v. Lincoln Unified School Dist.* (2010) 188 Cal.App.4th 758.)

The current application is sealed as the confidentiality of the plaintiff outweighs the public's right to access to the application. (California Rules of Court, Rule 2.550 et seq.) The sealing is narrowly tailored solely to the briefing related to the filing of the current request.

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23. S-CV-0057977 IRPO RYLEE BROWN

Petition for Approval of Minor's Compromise Claim for Rylee Brown

The petition is granted as prayed.

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